

		However, since all that Plaintiffs need are the organizational charts themselves, “all documents that evidence” the chart(s) is overly broad. Accordingly, the motion is GRANTED as to Request No. 42 but limited to the organizational chart(s) themselves.
5	Schwartz vs. Brunswick Corporation 2023-01331323	Plaintiff’s Motion for Protective Order The Motion for Protective Order by Plaintiff Martin Schwartz is DENIED as moot. The motion, which seeks a protective order regarding the depositions of Plaintiff and his wife, was filed on 7/31/24 without a proof of service. The hearing date was set for a date after trial was set to commence. Code of Civil Procedure section 2024.020(a) states, “Except as otherwise provided in this chapter, any party shall be entitled as a matter of right to complete discovery proceedings on or before the 30th day, and to have motions concerning discovery heard on or before the 15th day, before the date initially set for the trial of the action.” Here, Plaintiff’s counsel did not obtain leave of Court for this motion to be heard after the discovery motion cutoff date. In the opposition filed on 11/25/24, Defendant’s counsel declares that Plaintiff appeared for deposition on 9/13/24, and that Defendant has withdrawn its request to take the deposition of Plaintiff’s wife. Therefore, the motion is moot as to the request for a protective order. As to the request for sanctions, Plaintiff has not filed a reply brief. Plaintiff failed to file a proof of service of the motion and failed to obtain a hearing date prior to the discovery motion cutoff date. Therefore, the request for sanctions is denied.
6	Geng vs. Han 2023-01320032	Plaintiff’s Motion for Terminating Sanctions or Alternatively Issue Evidentiary Sanctions Plaintiff Ivy Zihan Geng’s unopposed motion for terminating sanctions, or, alternatively, evidentiary, issue, and monetary sanctions against defendant Feijuan Xiong is GRANTED in part and DENIED without prejudice in part. Plaintiff’s request for judicial notice of Exhibits 1-15 is GRANTED.

Request for Terminating Sanctions:

“[T]erminating sanctions are to be used sparingly, only when the trial court concludes that lesser sanctions would not bring about the compliance of the offending party.” (*R.S. Creative, Inc. v. Creative Cotton, Ltd.* (1999) 75 Cal.App.4th 486, 496.) “The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. ‘Discovery sanctions “should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.” ’ [Citation.] If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse. ‘A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.’ [Citation.]” (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 992 (*Doppes*) (Footnote 5 omitted.)) Before issuing terminating sanctions, the court should usually grant lesser sanctions such as orders staying the action until the derelict party complies, or orders declaring matters as admitted or established if answers are not received by a specified date, often accompanied with costs and fees to the moving party. *Deyo v. Kilbourne*, 84 Cal. App. 3d 771, 796 (1978).

Plaintiff has shown Defendant has violated two Court Orders. First, Defendant violated the Court’s 4-23-24 Order compelling Defendant to serve responses to Plaintiff’s Form Interrogatories, Set One; Special Interrogatories, Set One; and Request for Production of Documents, Set One; and to pay monetary sanctions within 20-days. (Yu Decl., ¶ 18, Ex. 12.) Notice of the ruling was served by mail on 4-23-24 on Defendant. (Yu Decl., ¶ 18, Ex. 12.) To date, Defendant has not complied with the 4-23-24 Order.

Second, Defendant violated the Court’s 4-30-24 Order which in addition to granting Plaintiff’s request to Deem Matters specified in Requests for Admission, Set One, also granted monetary sanctions in the amount of \$735. (Yu Decl., ¶ 18, Ex. 13.) Notice of the ruling was served by mail on 5-1-24 on Defendant. (Yu Decl., ¶ 18, Ex. 13.) To date, Defendant has not complied with the 4-30-24 Order to pay monetary sanctions.

		The moving party must not only show that there was violation of the court's order, but that such violation was willful. (<i>Doppes, supra</i>, 174 Cal.App.4th at 992.) Although Plaintiff has shown that in other litigation against Defendant, Defendant similarly failed to respond to discovery requests, this is insufficient to show Plaintiff's failure to comply with the Court's Orders at issue in this case was willful. Further, there has been no incremental approach to sanctions and lesser sanctions of issue, evidentiary, and/or monetary sanctions are appropriate at this time. Accordingly, Plaintiff's request for terminating sanctions is DENIED. <u>Request for Issue and Evidentiary Sanctions:</u> Pursuant to California Rules of Court, Rule 3.1345(a)(7), a separate statement is required for a motion for issue or evidentiary sanctions. Plaintiff has not filed a separate statement in support of its request for issue and evidentiary sanctions and therefore failed to comply with Rule 3.1345(a)(7). Accordingly, Plaintiff's request for issue and evidentiary sanctions is DENIED. <u>Request for Monetary Sanctions:</u> Plaintiff's request for monetary sanctions is GRANTED in the reduced amount of \$2,076. Defendant is ORDERED to pay \$2,076 in monetary sanctions to Plaintiff within 20-days' notice of this ruling. Defendant is ORDERED to comply with the Court's 4-23-24 and 4-30-24 Orders within 20-days' notice of this ruling. The Court warns Defendant that failure to comply with the Court's Order will result in more severe sanctions, which may include terminating sanctions. Plaintiff to give notice.
7	Sentinel Strategic Services, LLC. vs. Solera at Apple Valley Community Association, Inc. 2024-01399350	Defendant's Special Motion to Strike Complaint Defendant Solera at Apple Valley Community Association, Inc.'s Special Motion to Strike is GRANTED in part and DENIED in part. The Association seeks an order striking Plaintiff's Complaint under CCP § 425.16 – anti-SLAPP statute.